

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1910

By: Alonso-Sandoval

AS INTRODUCED

An Act relating to environment and natural resources; providing a short title; providing for the establishment and administration of the Oklahoma Urban Agriculture Cost-Share Program; providing for purpose of program; providing for promulgation of rules; requiring conservation districts to enter into contracts for eligible projects detailing responsibilities; defining terms; providing program guidelines; creating the Oklahoma Urban Agriculture Cost-Share Program Revolving Fund; providing for composition of fund; providing for depositing and expenditure of monies; requiring submission of certain information; requiring certain actions; providing for liability of state; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3-3-121 of Title 27A, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma Urban Agriculture Cost-Share Program".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 3-3-122 of Title 27A, unless
3 there is created a duplication in numbering, reads as follows:

4 A. The Oklahoma Conservation Commission is hereby authorized to
5 establish and administer the Urban Agriculture Cost-Share Program as
6 funds become available. The cost-share program shall provide monies
7 to eligible persons for the purpose of promoting sustainable urban
8 agricultural practices, improve food security, and enhance green
9 spaces in Oklahoma's urban areas.

10 B. The Commission shall promulgate rules governing the cost-
11 share program.

12 C. To implement the program, the Commission shall require
13 conservation districts to enter into contracts for eligible projects
14 detailing the eligible person's responsibilities.

15 D. For purposes of the Urban Agriculture Cost-Share Program:

16 1. "Eligible applicant" means any urban residents, community
17 groups, nonprofits, schools, local governments operating within
18 Oklahoma's urban counties, and Oklahoma farmers aiming to sell
19 products directly to consumers in urban counties.

20 2. "Eligible projects":

- 21 a. beekeeping and pollinator support: establishing urban
22 apiaries or planting pollinator-friendly flora,
23 b. community gardens: establishing or expanding gardens
24 in urban neighborhoods,

- c. edible landscaping: creating public spaces with fruit and nut trees or edible plants,
- d. education and outreach: developing educational programs on urban farming practices,
- e. greenhouses and high tunnels: installing structures for year-round food production,
- f. marketing for local farms: supporting Oklahoma farms to establish direct-to-consumer sales channels in urban areas, including farmer's markets, online platforms, and urban grocers as well as funding promotional materials, transportation costs, or pop-up markets within urban counties to increase access to local products,
- g. rooftop and vertical farming: implementing sustainable agriculture in urban spaces,
- h. soil restoration: enhancing soil health through composting and nutrient management in urban areas,
- i. urban livestock: providing infrastructure for small-scale, sustainable livestock management which shall include, but is not limited to, chicken coops and goat enclosures,
- j. waste reduction: initiatives such as composting programs to recycle organic urban waste into soil amendments, and

1 k. water conservation systems: installing rainwater
2 harvesting systems and efficient irrigation for urban
3 gardens.

4 3. "Urban counties" means any county with a population of one-
5 hundred thousand (100,000) or more based upon the most recent
6 Federal Decennial Census.

7 E. In implementing the program the Commission may cost-share up
8 to eighty-five percent (85%) of the eligible costs with a maximum
9 payment of Seven Thousand Five Hundred Dollars (\$7,500.00) per
10 applicant. The Commission shall prioritized projects based on
11 community impact, sustainability, and innovative use of urban space.

12 SECTION 3. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 3-3-123 of Title 27A, unless
14 there is created a duplication in numbering, reads as follows:

15 There is hereby created in the State Treasury a revolving fund
16 for the Oklahoma Conservation Commission to be designated the
17 "Oklahoma Urban Agriculture Cost-Share Program Revolving Fund". The
18 fund shall be a continuing fund, not subject to fiscal year
19 limitations, and shall consist of all monies received by the State
20 Board of Agriculture from state-appropriated funds, federal funds,
21 donations, grants and contributions from any public or private
22 source and designated for the purpose set forth in this section.
23 All monies accruing to the credit of the fund are hereby
24 appropriated and may be budgeted and expended by the Oklahoma

1 Conservation Commission for the purpose of administering the
2 Oklahoma Urban Agriculture Cost-Share Program. Expenditures from
3 the fund shall be made upon warrants issued by the State Treasurer
4 against claims filed as prescribed by law with the Director of the
5 Office of Management and Enterprise Services for approval and
6 payment.

7 SECTION 4. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 3-3-124 of Title 27A, unless
9 there is created a duplication in numbering, reads as follows:

10 A. The Oklahoma Conservation Commission shall require
11 applicants to submit information, forms and reports as necessary to
12 properly and efficiently administer the Oklahoma Urban Agriculture
13 Cost-Share Program.

14 B. Persons may apply to a conservation district for cost-share
15 funds for eligible projects in the State of Oklahoma, in accordance
16 with rules promulgated by the Commission. To be eligible for
17 reimbursement for a cost-share project, an eligible person must:

18 1. File a detailed plan approved by the conservation district
19 in which the eligible applicant is located; and

20 2. Enter into a contract with a conservation district detailing
21 the responsibilities of the eligible applicant.

22 C. Applications for funds shall be approved or denied by the
23 conservation district in accordance with criteria promulgated by the
24 Commission.

1 SECTION 5. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 3-3-125 of Title 27A, unless
3 there is created a duplication in numbering, reads as follows:

4 Nothing in this act or in the contract executed pursuant to
5 Section 4 of this act shall be interpreted or construed to
6 constitute a financial or general obligation of the state. No state
7 revenue shall be used to guarantee or pay for any damages to
8 property or injury to persons as a result of the provisions of this
9 act or the contract.

10 SECTION 6. This act shall become effective November 1, 2025.

11

12 60-1-11178 JL 01/13/25

13

14

15

16

17

18

19

20

21

22

23

24